UNION AND TERRITORY

ARTICLES 1-4 → ARTICLE 3 PROCEDURE → CESSION LIMIT → 1950/1956 MAP → CREATION CHRONOLOGY → J&K HOLDING → VIABILITY → EXACT PYQS → 10/15/20-MARK SPINE → QUALIFIED VERDICT

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

● PRIMARY CORE FLOW ◆ SUBORDINATE EXTRA ● APPROVAL / REVIEW

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

Approval: FALSE • Pending user review • active generation g16 • explicit approval of this exact generation is required • all prior artifacts unchanged

00

STAGE 00

ARTICLES 1-4: THE TERRITORIAL POWER HIERARCHY

ARTICLES 1-4 · THE TERRITORIAL POWER HIERARCHY · ARTICLE 1 · INDIA, THAT IS BHARAT · UNION OF STATES TERRITORY · STATES + UNION TERRITORIES + ACQUIRED TERRITORIES · ARTICLE 2 · PARLIAMENT ADMITS INTO UNION OR ESTABLISHES NEW STATES

ARTICLE 1

India, that is Bharat = Union of States territory = States + Union territories + → ARTICLE 2 → Parliament admits into Union or establishes new States

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 1
- India, that is Bharat = Union of States territory = States + Union territories + acquired territories
- ARTICLE 2

POWER / PROCEDURE

- Parliament admits into Union or establishes new States
- ARTICLE 3
- Parliament forms new States and alters area, boundary or name

CHECK / LIMIT

- ARTICLE 4 consequential First/Fourth Schedule changes and supplemental provisions laws under Articles 2 and 3 are not amendments under Article 368
- FIRST SCHEDULE = living ledger of States and Union territories
- PRINCIPLE: States have constitutional status, but no right to secede.

FEDERAL / RIGHTS IMPACT

- Parliament admits into Union or establishes new States

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The framers wanted the Constitution to show that India is federal in structure, but not the product of a treaty among pre-existing sovereign units.

01

STAGE 01

ARTICLE 3 PROCEDURE: CONSULTATION WITHOUT A STATE VETO

ARTICLE 3 PROCEDURE · CONSULTATION WITHOUT A STATE VETO · PRESIDENT'S RECOMMENDATION REQUIRED · BILL AFFECTS AREA, BOUNDARY OR NAME OF A STATE? · PRESIDENT REFERS BILL TO AFFECTED STATE LEGISLATURE · +-- SPECIFIES TIME FOR EXPRESSING VIEWS · +-- MAY EXTEND THAT TIME · +-- PARLIAMENT IS NOT BOUND BY THOSE VIEWS

PRESIDENT'S RECOMMENDATION REQUIRED → BILL affects area, boundary or name of a State? → YES → President refers bill to affected State legislature → +-- specifies time for expressing views → +-- may extend that time

CONSTITUTIONAL BASIS / ARTICLE

- PRESIDENT'S RECOMMENDATION REQUIRED
- BILL affects area, boundary or name of a State?
- YES → President refers bill to affected State legislature

POWER / PROCEDURE

- +-- specifies time for expressing views
- +-- may extend that time
- +-- Parliament is not bound by those views

CHECK / LIMIT

- NO State affected → proviso referral does not arise in that form
- PARLIAMENT passes by ordinary legislative majority
- PRESIDENTIAL ASSENT → territorial and Schedule changes

FEDERAL / RIGHTS IMPACT

- State view is required consultation, not consent.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 3 requires presidential recommendation and State consultation, but Parliament is not bound by the State's view and Union Territories lack an equivalent proviso right.

02

STAGE 02

ARTICLE 2, ARTICLE 3 AND FOREIGN-TERRITORY TRANSFER ARE DISTINCT

ARTICLE 2, ARTICLE 3 AND FOREIGN-TERRITORY TRANSFER ARE DISTINCT · QUESTION CONSTITUTIONAL ROUTE ADMIT OR ESTABLISH NEW STATE ARTICLE · BERUBARI UNION (1960) CESSION OF INDIAN TERRITORY CANNOT BE · MAGANBHAI ISHWARBHAI PATEL (1969) BOUNDARY SETTLEMENT DIFFERS FROM CESSION · 100TH AMENDMENT, 2015 CONSTITUTIONAL ROUTE USED FOR INDIA-BANGLADESH LAND-BOUNDARY

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
QUESTION CONSTITUTIONAL ROUTE admit or establish new State Article 2 reorganise existing Indian unit Article 3 acquire foreign	BERUBARI UNION (1960) cession of Indian territory cannot be completed through Article 3 alone.	100TH AMENDMENT, 2015 constitutional route used for India-Bangladesh land-boundary exchange.	Article 1 can accommodate it cede Indian territory constitutional amendment under Article 368 settle uncertain boundary no cession
Article 1 can accommodate it cede Indian territory constitutional amendment under Article 368 settle uncertain boundary no cession	MAGANBHAI ISHWARBHAI PATEL (1969) boundary settlement differs from cession.	QUESTION CONSTITUTIONAL ROUTE admit or establish new State Article 2 reorganise existing Indian unit Article 3 acquire foreign	BERUBARI UNION (1960) cession of Indian territory cannot be completed through Article 3 alone.

CONSTITUTIONAL BASIS / ARTICLE

- QUESTION CONSTITUTIONAL ROUTE admit or establish new State Article 2 reorganise existing Indian unit Article 3 acquire foreign
- Article 1 can accommodate it cede Indian territory constitutional amendment under Article 368 settle uncertain boundary no cession

POWER / PROCEDURE

- BERUBARI UNION (1960) cession of Indian territory cannot be completed through Article 3 alone.
- MAGANBHAI ISHWARBHAI PATEL (1969) boundary settlement differs from cession.

CHECK / LIMIT

- 100TH AMENDMENT, 2015 constitutional route used for India-Bangladesh land-boundary exchange.
- QUESTION CONSTITUTIONAL ROUTE admit or establish new State Article 2 reorganise existing Indian unit Article 3 acquire foreign

FEDERAL / RIGHTS IMPACT

- Article 1 can accommodate it cede Indian territory constitutional amendment under Article 368 settle uncertain boundary no cession
- BERUBARI UNION (1960) cession of Indian territory cannot be completed through Article 3 alone.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 2 admits or establishes new States, whereas Article 3 reorganises existing Indian territory, making the powers related but not interchangeable.

03

STAGE 03

FIRST SCHEDULE AS A CONSTITUTIONAL CHANGE LEDGER

FIRST SCHEDULE AS A CONSTITUTIONAL CHANGE LEDGER · TERRITORIAL LAW UNDER ARTICLE 2 OR 3 CHANGES FIRST · STATE AND UNION-TERRITORY DESCRIPTION MAY CHANGE FOURTH SCHEDULE · RAJYA SABHA SEAT ALLOCATION MAY INCLUDE SUPPLEMENTAL, INCIDENTAL AND · ARTICLE 4 DECLARATION SUCH LAW IS NOT DEEMED AN · ORDINARY LEGISLATIVE ROUTE · ARTICLE 4 SUPPORTS TERRITORIAL REORGANISATION · IT DOES NOT BYPASS ARTICLE 368 FOR UNRELATED CONSTITUTIONAL

TERRITORIAL LAW UNDER ARTICLE 2 OR 3 changes First Schedule: State and Union-territory description may → Rajya Sabha seat allocation may include supplemental, incidental and consequential provisions → ARTICLE 4 DECLARATION such law is not deemed an Article 368 amendment → ORDINARY LEGISLATIVE ROUTE → Article 4 supports territorial reorganisation

CONSTITUTIONAL BASIS / ARTICLE

- TERRITORIAL LAW UNDER ARTICLE 2 OR 3 changes First Schedule: State and Union-territory description may change Fourth Schedule
- Rajya Sabha seat allocation may include supplemental, incidental and consequential provisions

POWER / PROCEDURE

- ARTICLE 4 DECLARATION such law is not deemed an Article 368 amendment
- ORDINARY LEGISLATIVE ROUTE

CHECK / LIMIT

- Article 4 supports territorial reorganisation
- it does not bypass Article 368 for unrelated constitutional changes.

FEDERAL / RIGHTS IMPACT

- TERRITORIAL LAW UNDER ARTICLE 2 OR 3 changes First Schedule: State and Union-territory description may change Fourth Schedule
- Rajya Sabha seat allocation may include supplemental, incidental and consequential provisions

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 4 simplifies internal territorial change through incidental provisions, but cannot authorise cession of Indian territory to a foreign sovereign.

04

STAGE 04

INTEGRATION AND LINGUISTIC REORGANISATION, 1947-1956

INTEGRATION AND LINGUISTIC REORGANISATION, 1947-1956 · 1947-49 ACCESSION AND INTEGRATION OF PRINCELY STATES · 1950 PART A, B, C AND D CLASSIFICATION BEGINS · 1948 DHAR COMMISSION CAUTIONS AGAINST LANGUAGE-ONLY REORGANISATION · 1948 JVP COMMITTEE POSTPONES LINGUISTIC REORGANISATION · 1952 POTTI SRIRAMULU'S DEATH INTENSIFIES ANDHRA DEMAND · 1953 ANDHRA STATE FORMED; STATES REORGANISATION COMMISSION APPOINTED · 1955 FAZL ALI COMMISSION REPORT

1947-49 accession and integration of princely states → 1950 Part A, B, C and D classification begins → 1948 Dhar Commission cautions against language-only reorganisation → 1949 JVP Committee postpones linguistic reorganisation → 1952 Potti Sriramulu's death intensifies Andhra demand

CONSTITUTIONAL BASIS / ARTICLE

- 1947-49 accession and integration of princely states
- 1950 Part A, B, C and D classification begins
- 1948 Dhar Commission cautions against language-only reorganisation

POWER / PROCEDURE

- 1949 JVP Committee postpones linguistic reorganisation
- 1952 Potti Sriramulu's death intensifies Andhra demand
- 1953 Andhra State formed; States Reorganisation Commission appointed

CHECK / LIMIT

- 1955 Fazl Ali Commission report
- 1956 States Reorganisation Act + Seventh Amendment language accepted with unity, administration and economy
- Part classifications abolished

FEDERAL / RIGHTS IMPACT

- States and Union territories reorganised
- Language became accommodation's basis, not an automatic sole test.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Hyderabad, Junagadh and Jammu and Kashmir are highlighted because their routes were politically difficult, not because the remaining integrations were legally or administratively uniform.

05

STAGE 05

POST-1956 MAP-MAKING: REORGANISATION, CREATION AND RENAMING

POST-1956 MAP-MAKING · REORGANISATION, CREATION AND RENAMING · 1956 SETTLEMENT · 1960 MAHARASHTRA + GUJARAT · 1963 NAGALAND · 1966 HARYANA + CHANDIGARH; PUNJAB REORGANISED · 1971 HIMACHAL PRADESH · 1972 MEGHALAYA, MANIPUR AND TRIPURA

1956 SETTLEMENT

1960 Maharashtra + Gujarat → 1963 Nagaland → 1966 Haryana + Chandigarh; Punjab reorganised

CONSTITUTIONAL BASIS / ARTICLE

- 1956 SETTLEMENT
- 1960 Maharashtra + Gujarat
- 1963 Nagaland
- 1966 Haryana + Chandigarh; Punjab reorganised

POWER / PROCEDURE

- 1971 Himachal Pradesh
- 1972 Meghalaya, Manipur and Tripura
- 1975 Sikkim becomes a State
- 1987 Mizoram, Arunachal Pradesh and Goa

CHECK / LIMIT

- 2000 Chhattisgarh, Uttarakhand and Jharkhand
- 2014 Telangana
- 2019 Jammu and Kashmir reorganised into two Union territories
- RENAMING uses Article 3 when a State name changes.

FEDERAL / RIGHTS IMPACT

- CURRENT MAP IN SOURCE: 28 States and 8 Union territories.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Maharashtra is not labelled the 15th State: Gujarat is conventionally counted as the 15th because the bilingual Bombay State was reorganised into the two successor States.

06

STAGE 06

JAMMU AND KASHMIR REORGANISATION AS AN ARTICLE 3 STRESS TEST

2019 J&K REORGANISATION · J&K UT WITH LEGISLATURE · LADAKH UT WITHOUT LEGISLATURE · 2023 INSC 1058 · LADAKH CARVING UPHELD · WHOLE-STATE CONVERSION NOT FINALLY DECIDED · STATEHOOD RESTORATION AT THE EARLIEST

2019 Reorganisation Act took effect 31 October 2019

J&K became a UT with Legislature; Ladakh a UT without Legislature → Article 3 State-legislature views are recommendatory → Ladakh carving upheld under Article 3(a) read with Explanation I

OPERATIVE LAW

- 2019 Reorganisation Act took effect 31 October 2019
- J&K became a UT with Legislature; Ladakh a UT without Legislature

SUPREME COURT HOLDING

- Article 3 State-legislature views are recommendatory
- Ladakh carving upheld under Article 3(a) read with Explanation I
- Whole-State-to-two-UT conversion not finally decided because of restoration assurance

CHECK / LIMIT

- J&K Statehood restoration directed at the earliest
- No enacted restoration located through 28 August 2026
- Do not generalise this into approval of every State-to-UT conversion

FEDERAL IMPACT

- Justice Khanna stressed grave federal consequences
- Separate legal validity from democratic legitimacy

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The 2023 judgment upheld carving Ladakh as a UT but did not finally decide the broader whole-State-to-UT conversion question; J&K remains a UT pending enacted restoration.

07

STAGE 07

NEW-STATE DEMAND: DEMOCRATIC CLAIM VERSUS VIABLE FEDERAL UNIT

NEW-STATE DEMAND · DEMOCRATIC CLAIM VERSUS VIABLE FEDERAL UNIT · CLAIM FOR NEW STATE IDENTITY + DISTANCE FROM CAPITAL · CONSTITUTIONAL RESPONSE · ARTICLE 3 REORGANISATION AFTER REQUIRED CONSULTATION · TESTS ADMINISTRATIVE VIABILITY FISCAL AND RESOURCE SUSTAINABILITY MINORITY PROTECTION · SMALLER CAN IMPROVE ACCESS; IT DOES NOT AUTOMATICALLY PRODUCE

CONSTITUTIONAL BASIS / ARTICLE

- CLAIM FOR NEW STATE identity + distance from capital + uneven development + administrative access
- CONSTITUTIONAL RESPONSE

POWER / PROCEDURE

- Article 3 reorganisation after required consultation
- TESTS administrative viability fiscal and resource sustainability minority protection inside proposed unit water, capital, assets, debt and employees

CHECK / LIMIT

- security and territorial integrity democratic legitimacy and transition costs
- Smaller can improve access; it does not automatically produce capacity or equality.

FEDERAL / RIGHTS IMPACT

- CLAIM FOR NEW STATE identity + distance from capital + uneven development + administrative access
- CONSTITUTIONAL RESPONSE

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Statehood can improve representation and focus, but without capacity and negotiated transition it can merely relocate conflict.

08

STAGE 08

EXACT VERIFIED PYQ CONTROLS: WORDING, DEMAND AND ANSWER OWNERSHIP

2025 PRELIMS GS-I Q52 · OFFICIAL KEY C: ALL THREE · 2018 GS-I Q12 · ECONOMIC BENEFIT OR NOT · 2022 GS-I Q11 · CONTINUOUS ONGOING PROCESS · EXACT WORDING + MARKS + WORD LIMIT

2025 OBJECTIVE CONTROL

- Arunachal Pradesh, Nagaland and Tripura pairs
- Official answer C: all three
- Statehood Act and accompanying amendment are not mutually exclusive

2018 | 15 MARKS | 250 WORDS

- Formation of new states in recent times
- Beneficial or not for the economy of India
- Evaluate capacity, fiscal viability and transition

2022 | 15 MARKS | 250 WORDS

- Political and administrative reorganization
- Continuous ongoing since mid-nineteenth century
- Use colonial and post-Independence examples

ANSWER CONTROL

- Do not paraphrase away the directive
- Do not convert Statehood into automatic economic benefit

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Exact PYQ control means reproducing the demand before answering it: official key for the objective item, and exact wording, marks and word limit for each Mains model.

09

STAGE 09

EXACT 10/15/20-MARK ARCHITECTURE: FLEXIBLE TERRITORY WITHIN AN INDESTRUCTIBLE UNION

10 MARKS / 150 WORDS · PROVISION → MECHANISM → CASE → VERDICT · 15 MARKS / 250 WORDS · ADD HISTORY + FEDERAL BALANCE · 20 MARKS / 250 WORDS · VALIDITY → LEGITIMACY → PRUDENCE · CURRENT PROPOSAL IS NOT LAW

10 marks: Article 1 thesis → Articles 2/3 → procedure → one case → verdict → 15 marks: Articles 1-4 → history → case law → balance → graded verdict → 20 marks: add Explanation I, exact J&K holding, critique and reform → Every answer: evidence → mechanism → analysis → limit → verdict → specific improvement

10 MARKS / 150 WORDS

- 10 marks: Article 1 thesis → Articles 2/3 → procedure → one case → verdict
- Use one exact case and one distinction

15 MARKS / 250 WORDS

- 15 marks: Articles 1-4 → history → case law → balance → graded verdict
- Use chronology as argument, not a list

20 MARKS / 250 WORDS

- 20 marks: add Explanation I, exact J&K holding, critique and reform
- Separate validity, legitimacy and prudence

CHECK / LIMIT

- Every answer: evidence → mechanism → analysis → limit → verdict → specific improvement
- Do not treat a proposal or assurance as enacted law

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Scale the architecture, not the padding: a 20-marker adds history, constitutional nuance, criticism and reform while preserving exact law and a graded verdict.

10

STAGE 10

QUALIFIED FINAL SYNTHESIS: FLEXIBLE MAP, PROTECTED SOVEREIGNTY, NEGOTIATED LEGITIMACY

INTERNAL FLEXIBILITY · ARTICLES 3-4 · SOVEREIGNTY LIMIT · BERUBARI UNION (1960) + ARTICLE 368 · FEDERAL LEGITIMACY · CONSULTATION + VIABILITY + TRANSITION · 28 STATES + 8 UTS

INTERNAL MAP

- Articles 3-4 permit ordinary-law reorganisation
- State views are constitutionally required where proviso applies but are non-binding

EXTERNAL SOVEREIGNTY

- Berubari Union (1960) excludes foreign cession from Article 3
- Article 368 supplies the constitutional route

LEGITIMACY TEST

- Transparent consultation
- Fiscal and administrative viability
- Minority safeguards and negotiated transition

CURRENT-LAW CONTROL

- 28 States and 8 UTs
- J&K remains a UT with Legislature through 28 August 2026
- Ladakh demands remain dialogue, not enacted law

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 3 is a centralising safety valve: it strengthens unity when used for constitutional accommodation, but its democratic legitimacy depends on consultation, viability and negotiated transition.

E

EXTRA

SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT · EXPLANATION I IS A FAVOURITE CLOSE-OPTION TRAP. · IN ARTICLE 3, 'STATE' INCLUDES UNION TERRITORIES FOR CLAUSES · THIS IS WHY PARLIAMENT MAY RESTRUCTURE UTS WITHOUT A · THE FIRST SCHEDULE AND FOURTH SCHEDULE DO DIFFERENT JOBS. · THE FIRST SCHEDULE TRACKS TERRITORIAL UNITS; THE FOURTH SCHEDULE · ARTICLE 4 LETS A REORGANISATION LAW ADJUST BOTH TOGETHER. · ORDINARY LAW IS NOT A LESSER CONSTITUTIONAL ACT IN

OPTIONAL DOCTRINE / CASE

- Explanation I is a favourite close-option trap.
- In Article 3, 'State' includes Union Territories for clauses (a) to (e), but not for the proviso requiring reference to a State legislature.
- This is why Parliament may restructure UTs without a comparable constitutionally mandated consultation step.
- The First Schedule and Fourth Schedule do different jobs.

ADVANCED LIMIT

- The First Schedule tracks territorial units; the Fourth Schedule tracks Rajya Sabha seat allocation.
- Article 4 lets a reorganisation law adjust both together.
- Ordinary law is not a lesser constitutional act in this chapter.
- An Article 3 law is ordinary in voting threshold, but constitutional in subject matter.

COMPARATIVE NUANCE

- That is why it can lawfully redraw the map while still remaining outside Article 368.
- Berubari Union (1960) is not just a territorial case.
- It also teaches exam method: identify whether the question is about internal diminution, cession, or interpretive use of
- a case in another topic such as the Preamble.

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.

END OF MASTER CANVAS • poster embeds this exact master • tiled pages are overlapping crops of the same pixels